

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 9, 2018

Honorable Steven D. Barnes
Judge of the Superior Court
County of Kings
1640 Kings County Drive
Hanford, CA 93230

Re: Parra, Fernando Robert
CDC No.: F79644
Case No.: 06CM7602
Date of Sentence: June 28, 2007

Dear Honorable Steven D. Barnes:

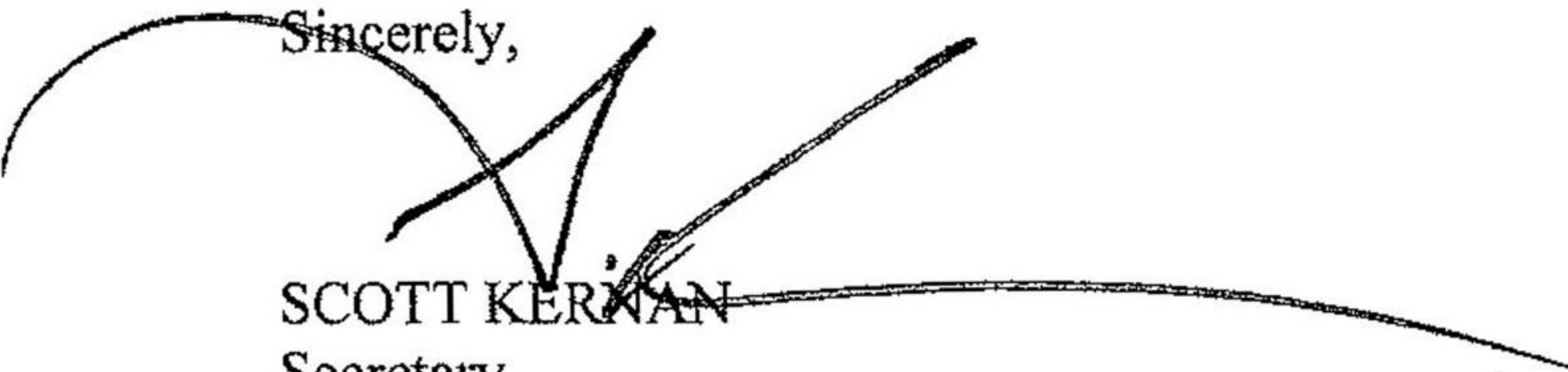
The purpose of this letter is to provide the court with authority to resentence Fernando Robert Parra pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Parra was sentenced in 2007, and was convicted of section 245, subdivision (a)(1), Assault By Means of Force Likely to Produce GBI. The trial court sentenced inmate Parra on June 28, 2007. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Parra's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Parra's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
2nd Amended Felony Complaint

cc: Honorable Donna L. Tarter, Kings County Presiding Judge
Kings District Attorney
Public Defender

F79644

**ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM**
(Not to be used for multiple count convictions or for 1/3 consecutive sentences)

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: KINGS			ENTERED INTO ODIS				
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: FERNANDO ROBERT PARRA		DOB: 04-27-84				CASE NUMBER 06CM7602	
AKA: CII NO.: A22291516 BOOKING NO.: 060273450		☐ NOT PRESENT					
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☐ AMENDED ABSTRACT					
DATE OF HEARING 06-28-07		DEPT. NO. 05		JUDGE STEVEN D. BARNES ✓			
CLERK ROSIE S. SALAS		REPORTER HEIDI R. BENAVIDES		PROBATION NO. OR PROBATION OFFICER ☒ IMMEDIATE SENTENCING			
COUNSEL FOR PEOPLE ADAM NELSON, DDA		COUNSEL FOR DEFENDANT MELINA BENNINGHOFF		☒ APPTD.			

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	TIME IMPOSED	
						JURY	COURT	PLEA		YRS.	MOS.
2	PC	245(a)(1)	ASSAULT BY MEANS OF FORCE LIKELY TO PRODUCE GBI	2006	06-28-07			X	M	6	0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
2	PC186.22(b)(1)	10 YRS	PC12022.7(a)	3 YRS			13 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☒ Deft. sentenced per: ☒ PC 667(b)-(i) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments): ☒ Court Security Fee of \$ 20.00 per PC 1465.8.

Restitution Fine(s): \$ 200.00 per PC 1202.4(b) forthwith per PC 2085.5; \$200.00 per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC 1202.4(f): ☐ \$RESERVED / ☐ Amount to be determined to ☒ victim(s)* ☐ Restitution Fund
☐ *Victim name(s), if known, and amount breakdown in item 8 below. ☐ *Victim name(s) in probation officer's report.

Fine(s): \$ _____ per PC 1202.5. \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

6. TESTING: a. ☐ Compliance with PC 296 verified b. ☒ DNA per PC 296 c. ☐ AIDS per PC 1202.1 d. ☐ other (specify): _____

7. IMMEDIATE SENTENCE: ☒ Probation to prepare and submit a post-sentence report to CDCR per PC 1203c. Deft's Race/Nat'l Origin H

8. Other orders (specify): **THE 3 YEAR TERM IS TO RUN CONSECUTIVE TO THE 6 YEAR TERM; DEFENDANT IS TO REGISTER AS A CRIMINAL STREET GANG MEMBER OR PARTICIPANT PURSUANT TO 186.30 OF THE PENAL CODE.**

9. TOTAL TIME IMPOSED EXCLUDING COUNTY JAIL TERM: 19 0

10. ☐ This sentence is to run concurrent with (specify): _____

11. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify): _____

12. DATE SENTENCE PRONOUNCED 06-28-07	CREDIT FOR TIME SPENT IN CUSTODY 238	TOTAL DAYS INCLUDING: 238	ACTUAL LOCAL TIME 31	LOCAL CONDUCT CREDITS ☒ 4019 ☐ 2933.1	TIME SERVED IN STATE INSTITUTION: DMH CDCR CRC
---	--	-------------------------------------	--------------------------------	---	---

13. The defendant is remanded to the custody of the sheriff: ☒ to the reception center designated by the director of the California Department of Corrections and Rehabilitation.
To be delivered to ☐ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☒ Other (specify): **WASCO STATE PRISON**

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE ROSIE S. SALAS	DATE 07-02-07
---	-------------------------

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1203.2 for determinate sentences. Attachments may be used but must be referred to in this document.